



POLICE DEPARTMENT

October 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206519 (Incident Date: September 25, 2022) regarding Police Officer Jake Rotolo, Tax No. 963247 (DADS No. 2024-30516)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202206519, pertaining to Police Officer Jake Rotolo. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Rotolo would be detrimental to the Police Department's disciplinary process.

In this matter, the CCRB seeks to serve Charges and Specifications against Police Officer Rotolo for New York Penal Law § 110/120.00, Attempted Assault in the Third Degree.¹ This was after the 18-month statute of limitations expired. This case originated when an individual called 911 because her son was acting irate, throwing objects, and requiring mental health assistance. Upon the officers' arrival, the son was still engaged in a heated argument while rearing back his fist and holding a belt. His mother's attempts to de-escalate the situation did not deter him in any way from continuing to act violently. Based on these facts, CCRB determined it to be reasonable for the officers to take the son into custody. By his own admissions, the son did not respond to the officers' commands. Therefore, forcible restraint was necessary. It is further undisputed that the son continued to actively resist throughout the physical interaction by twisting and moving his body against the officers, using his legs to gain leverage against the officers, flailing his arms, and tensing his muscles.² The son's actions required the officers to use physical force to overcome the resistance. Police Officer Rotolo's inadvertent one to two (1-2) second contact with the son's neck during the attempt to restrain him did not amount to criminal conduct, as would be required to sustain an Attempted Assault charge.

1. It should be noted that the NYPD's Internal Affairs Bureau conducted a parallel investigation and concluded the Police Officer Rotolo's contact with the individual's neck was brief, that no choke hold was applied, and there was no prohibited method of restraint used.

2. See CCRB Investigative Recommendation at page 5.

Additionally, Police Officer Rotolo has no prior substantiated CCRB allegations or formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation of Attempted Assault in the Third Degree.

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 31, 2024

The Honorable Thomas G. Donlon
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

**RE: CCRB Case No. 202206519 (Incident Date: September 25, 2022) regarding
Police Officer Jake Rotolo, Tax No. 963247 (DADS No. 2024-30516)**

Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony Marino, dated October 24, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter against Police Officer Jake Rotolo and impose no disciplinary action. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino states that “Police Officer Rotolo’s inadvertent one to two (1-2) second contact with the son’s neck during the attempt to restrain him did not amount to criminal conduct, as would be required to sustain an Attempted Assault charge.” CCRB disagrees with this determination.

In this matter, the Body worn camera footage clearly shows that during the physical struggle, Police Officer Rotolo wrapped his right hand around § 87(2)(b) neck and placed his weight on it, pushing § 87(2)(b) head further into the trash bags, an action that Police Officer Rotolo acknowledged though he noted he immediately removed it. Regardless of the duration, the application of pressure to the throat or windpipe of a subject with the potential to hinder breathing or reduce intake of air is considered a chokehold and is strictly prohibited by Patrol Guide 221-01. Additionally, Body worn camera footage shows that both § 87(2)(b) hands were restrained when Police Officer Rotolo wrapped his hand around § 87(2)(b) neck.

Although Deputy Chief Marino states that a parallel investigation has been conducted by the Internal Affairs Bureau and concluded the Police Officer Rotolo’s contact with the individual’s neck was brief, that no choke hold was applied, and there was no prohibited method of restraint used. The memo of understanding limits matters, in which it would be detrimental to the Police Department’s disciplinary process, to matters where “there are parallel or related criminal

investigations...” The fact that an IAB case is found that there was no prohibited method of restraint used, does not preclude the CCRB from pursuing Charges and Specifications for the same incident.

Based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Rotolo in this matter.

Respectfully submitted,

Claudia Avin

p.p., Claudia Avin, Deputy Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 1, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206519 (Incident Date: September 25, 2022) regarding Police Officer Jake Rotolo, Tax No. 963247 (DADS No. 2024-30516)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 31, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Jake Rotolo. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Rotolo for the reasons expressed in my October 24, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegations of Attempted Assault in the Third Degree.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office